

BEFORE THE FEDERAL MARITIME COMMISSION

OFFICE OF ADMINISTRATIVE LAW JUDGES

Docket No. 25-24

SOUTHERN INTERNATIONAL CO., LTD., Complainant,

v.

DAYNAMEZ GROUP OF COMPANIES LLC, Respondent.

COMPLAINANT'S MOTION TO DISMISS RESPONDENT'S COUNTERCLAIM OR, IN THE ALTERNATIVE, TO STRIKE PORTIONS OF THE COUNTERCLAIM

Complainant Southern International Co., Ltd. ("SIC"), by and through its undersigned representative, respectfully moves for an order dismissing Respondent Daynamez Group of Companies LLC's ("Daynamez") Counterclaim in whole or in part, or, in the alternative, striking those portions of the Counterclaim that exceed the permissible scope of a counterclaim in this Shipping Act proceeding.

To the extent SIC seeks dismissal of all or part of Respondent Daynamez Group of Companies LLC's Counterclaim, this motion is a dispositive motion within the meaning of 46 C.F.R. §§ 502.69(g) and 502.70.

SIC further submits that, read together, 46 C.F.R. §§ 502.62(b)(1) and 502.62(b)(4) mean that SIC's answer to the Counterclaim is due ten (10) days after service of an order denying this motion.

SIC does not file a reply to Respondent's Answer; rather, SIC directs this motion solely to the Counterclaim, which under 46 C.F.R. § 502.62(b)(4) must allege and be limited to Shipping Act violations within the Commission's jurisdiction.

I. INTRODUCTION

This motion presents a threshold issue of scope, jurisdiction, and pleading sufficiency. In its Verified Answer and Affirmative Defenses and Counterclaim served on March 27, 2026, Daynamez asserted two counterclaims against SIC. As pleaded, Count I appears to seek indemnification, defense, hold-harmless relief, and alleged business and reputational damages arising from an asserted downstream dispute involving DGS Logistics, OOCL, and purportedly abandoned cargo. Count II is expressly styled as "Breach of Contract and violation of the Shipping Act" and appears to allege that SIC owes Daynamez money under the parties' commercial arrangement. Neither count, as pleaded, is a proper counterclaim within the limited jurisdiction of the Commission.

Under the Commission's Rules, a counterclaim in an answer "must allege and be limited to violations of the Shipping Act within the jurisdiction of the Commission." 46 C.F.R. § 502.62(b)(4). Count II fails that test on its face. It is expressly pleaded as a contract-based money-owed claim, and it is, in substance, a contract and accounting dispute repackaged in Shipping Act terminology.

Count I fares no better. Even assuming, solely for purposes of this motion, that Count I arises from an actual downstream dispute involving OOCL, DGS, and a shipment allegedly abandoned after arrival in New York, the Counterclaim still does not identify a coherent Shipping Act duty tied to SIC's conduct. At most, Count I describes a downstream charges, indemnity, and contractual risk-allocation dispute. It does not plead the regulated-capacity theory, the operative statutory duty, or the transaction-level

factual allegations necessary to state a plausible Shipping Act counterclaim under the standards the Commission and Judge Hervey have applied in this proceeding. See Order on Respondent's Motion to Dismiss and Respondent's Motion to Strike, Dkt. No. 10 (served Dec. 1, 2025), and Order on Respondent's Motion to Dismiss Amended Complaint, Dkt. No. 17 (served Jan. 16, 2026).

The Agency Agreement confirms the same point. See Exhibit A (Agreement) attached to Complainant's Verified Second Amended Complaint, Dkt. No. 18. Judge Hervey has already recognized that the Second Amended Complaint incorporates Exhibits A to E by reference, including the parties' December 1, 2023 agency agreement. SIC cites that exhibit only as part of the record properly incorporated into the Verified Second Amended Complaint. The Agreement reflects a commercial relationship between the parties and includes provisions relating to profit structure, remittance and accounting, indemnity, and arbitration. Those provisions reinforce that the counterclaims sound in contract, accounting, indemnity, and downstream loss allocation, not in a properly pleaded statutory claim under the Shipping Act.

II. PROCEDURAL BACKGROUND

On August 29, 2025, the Commission issued a Notice of Filing of Complaint and Assignment for this proceeding, and Chief Administrative Law Judge Erin M. Wirth designated the Honorable Mary Apostolakos Hervey to preside and issue any initial decision or dispositive ruling. SIC commenced this matter by filing its complaint on August 26, 2025. Respondent moved to dismiss, contending, among other things, that the Commission lacked jurisdiction because Daynamez was not acting as an NVOCC or other regulated entity and that any dispute belonged in Vietnam arbitration under the parties' agreement.

On December 1, 2025, Judge Hervey deferred ruling on the motion to dismiss to allow amendment and denied Respondent's motion to strike. In doing so, Judge Hervey confirmed that Commission proceedings in this matter would be governed by the Commission's Rules and, where appropriate, federal pleading principles. SIC then filed an Amended Formal Complaint on December 10, 2025. Respondent again moved to dismiss. On January 16, 2026, Judge Hervey granted dismissal as to SIC's claims under 46 U.S.C. §§ 41102(a) and 41102(b), but deferred ruling as to SIC's claims under 46 U.S.C. §§ 40901, 40902, and 41102(c) to permit SIC to file a second amended complaint addressing the deficiencies identified by the Commission.

On January 23, 2026, SIC filed its Verified Second Amended Complaint. That pleading alleges violations of 46 U.S.C. §§ 41102(c), 40901, and 40902 and asserts that Daynamez held itself out and acted as an NVOCC with respect to shipments from Vietnam to the United States, collected ocean freight payments, and failed to remit those funds to downstream carriers, causing detention and lien consequences affecting hundreds of shipments and containers.

Respondent again moved to dismiss. On March 16, 2026, Judge Hervey denied that motion. In doing so, Judge Hervey held that SIC's Second Amended Complaint sufficiently set forth plausible claims under 46 U.S.C. §§ 41102(c), 40901, and 40902 and expressly reaffirmed that the existence of a contract dispute between the parties does not deprive the Commission of exclusive jurisdiction to adjudicate properly pleaded Shipping Act claims.

On March 27, 2026, Daynamez served its Verified Answer and Affirmative Defenses and Counterclaim. In its affirmative defenses, Daynamez continued to contend that this matter is contractual in nature, that the Commission lacks jurisdiction, and that disputes under the parties'

agreement belong in arbitration in Vietnam. In the same filing, however, Daynamez asserted a Counterclaim comprised of two counts: Count I for indemnification, defense, hold-harmless relief, and related damages, and Count II for "Breach of Contract and violation of the Shipping Act".

The Agency Agreement on which the parties' course of dealing was based is dated December 1, 2023. For present purposes, the Agreement is significant because it reflects a commercial arrangement addressing matters such as profit structure, remittance and accounting, indemnity, and arbitration of disputes arising out of or in connection with the agreement.

Thus, Daynamez's Counterclaim arrives in a posture where the prior orders in this proceeding have already distinguished statutory Shipping Act claims from private contract disputes and have already required pleading discipline under Twombly and Iqbal. Resolving those threshold issues now will narrow the case and avoid unnecessary merits discovery on claims not properly before the Commission.

III. STATEMENT OF MATERIAL FACTS

Pursuant to the principles of 46 C.F.R. § 502.70(a) for dispositive motions, SIC submits the following concise statement of material facts:

1. Respondent Daynamez served its Counterclaim on March 27, 2026.
2. Count I seeks downstream relief including indemnification, defense, and hold-harmless remedies.
3. Count II is explicitly titled "Breach of Contract and violation of the Shipping Act".
4. The Agency Agreement governs the parties' commercial relationship and includes provisions relating to profit structure, remittance and accounting, indemnity, and arbitration.
5. The prior orders in this proceeding, including the orders served on January 16 and March 16, 2026, have already required strict Twombly/Iqbal pleading discipline and distinguished statutory claims from contract disputes.
6. The only currently surviving claims in this proceeding are claims pleaded under the Shipping Act.

IV. GOVERNING STANDARDS

A. FMC Counterclaims Must Be Limited to Shipping Act Violations

The Commission is a tribunal of limited jurisdiction, and jurisdiction must be established before the merits are reached. In this case, Judge Hervey has already emphasized the Commission's obligation to distinguish between properly pleaded Shipping Act claims and private contract disputes. That principle applies with particular force to counterclaims. Under 46 C.F.R. § 502.62(b)(4), a counterclaim in an answer "must allege and be limited to violations of the Shipping Act within the jurisdiction of the Commission".

The rule does not authorize a respondent to transform a Shipping Act complaint proceeding into a

general forum for collecting alleged contract debts, reallocating downstream commercial losses, or litigating indemnity disputes untethered to a properly pleaded Shipping Act violation. Accordingly, the first question presented by this motion is not whether Daynamez has alleged some form of commercial grievance, but whether the Counterclaim, as pleaded, falls within the narrow category of Shipping Act counterclaims the Commission may entertain.

B. Federal Rule 12 Pleading Standards Apply

The Commission's Rules do not expressly provide a standalone rule labeled "motion to dismiss," but Judge Hervey has repeatedly held in this proceeding that, pursuant to 46 C.F.R. § 502.12, the Federal Rules of Civil Procedure guide the analysis where doing so is consistent with sound administrative practice. Specifically, the Commission has already applied the familiar standards associated with Federal Rule of Civil Procedure 12(b)(6) and the pleading decisions in *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544 (2007), and *Ashcroft v. Iqbal*, 556 U.S. 662 (2009).

Under those standards, a pleading must contain enough factual matter, accepted as true for purposes of the motion, to state a claim that is plausible on its face. Labels, conclusions, formulaic recitations, and naked assertions devoid of factual enhancement do not suffice. See *Mitsui O.S.K. Lines Ltd. v. Global Link Logistics, Inc.*, Docket No. 09-01, 2011 WL 7144008, at *11-12 (FMC Aug. 1, 2011); *Cornell v. Princess Cruise Lines, Ltd.*, Docket No. 13-02, 2014 WL 5316340, at *6-7 (FMC Aug. 28, 2014); *Maher Terminals, LLC v. Port Auth. of N.Y. & N.J.*, Docket No. 12-02, 2015 WL 9426189, at *12 (FMC Dec. 18, 2015).

Those standards are especially apt here because this Presiding Officer required SIC to cure pleading deficiencies through additional factual allegations and exhibits before allowing its claims to proceed. Daynamez's Counterclaim is subject to the same threshold requirement that it plead a plausible claim, not merely a commercial grievance expressed in statutory terminology.

C. Threshold Resolution of Pleading Defects

The Presiding Officer's prior orders also make clear that where a party launches a facial challenge to jurisdiction or to the sufficiency of the pleading, the well-pleaded allegations are examined under a standard akin to Rule 12(b)(6), especially where jurisdictional facts overlap with facts going to the merits. See, e.g., *MAVL Capital, Inc. v. Marine Transport Logistics, Inc.*, Docket No. 16-16, 2020 FMC LEXIS 216, at *6 (FMC Oct. 29, 2020) (explaining that the Commission looks to Rule 12(b)(1) for jurisdictional dismissals and to Rule 12(b)(6) for failure-to-state-a-claim dismissals, and that when jurisdictional facts are intertwined with the merits, the Rule 12(b)(6) standard applies).c

That framework is directly applicable here. SIC does not ask the Presiding Officer, at this stage, to decide whose commercial narrative is ultimately correct. Rather, SIC asks the Presiding Officer to determine whether Daynamez's Counterclaim, on its face, alleges a proper Shipping Act counterclaim within Commission jurisdiction and whether it contains sufficient factual allegations to survive dismissal.

D. Shipping Act Claims Differ from Contract Claims

The Commission has made clear that Shipping Act claims are distinct from breach-of-contract claims and that the Commission's obligation to hear properly pleaded Shipping Act claims is not displaced merely because the same facts may also give rise to private contract claims between the parties. See *Cargo One, Inc. v. COSCO Container Lines Co.*, Docket No. 99-24, 28 S.R.R. 1635,

1645, 2000 WL 1648961, at *15 (FMC Oct. 31, 2000); *Anchor Shipping Co. v. Aliança Navegação E Logística Ltda.*, Docket No. 02-04, 30 S.R.R. 991, 2006 WL 2007808, at *10-11 (FMC May 10, 2006); *MCS Industries, Inc. v. Mediterranean Shipping Company S.A.*, Docket No. 21-05, 2024 WL 95383, at *7 (FMC Jan. 3, 2024).

That same distinction governs here in reverse. A respondent may not convert a private contract, accounting, or indemnity dispute into a proper Shipping Act counterclaim merely by attaching statutory labels to it.

V. ARGUMENT

A. Count II is an Improper Contract Claim

Count II should be dismissed at the outset because Daynamez has pleaded, on the face of its own Counterclaim, a contract claim for money allegedly owed under the parties' commercial arrangement rather than a proper Shipping Act counterclaim within the Commission's limited jurisdiction.

Count I and Count II are defective not only because they sound in contract and indemnity, but also because the Counterclaim fails to identify and plead an operative Shipping Act prohibition coherently. To the extent Respondent invokes 46 U.S.C. § 40101 et seq. as a general reference to the Shipping Act, that citation does not itself identify a substantive prohibition. A party still must identify and plead an operative statutory provision allegedly violated. And to the extent Respondent invokes 46 U.S.C. § 41102(a) while describing ordinary nonpayment, cargo-handling, or delivery-related conduct, that theory misfits the statute it cites. Section 41102(a) addresses obtaining ocean transportation at less than applicable rates by false billing or another unjust or unfair device or means; it does not create a free-standing Shipping Act claim for ordinary contract debt, nonpayment, or downstream indemnity loss allocation. See also 46 C.F.R. § 545.2 (explaining that, absent bad faith or deceit, the Commission will not infer an "unjust or unfair device or means" from a party's mere failure to pay ocean freight or tariff charges).

The Commission's Rules are explicit. A counterclaim in an answer "must allege and be limited to violations of the Shipping Act within the jurisdiction of the Commission." 46 C.F.R. § 502.62(b)(4). That rule is not a pleading technicality; it is a jurisdictional boundary. A respondent cannot convert a Shipping Act complaint proceeding into a forum for collection of alleged contract debts simply by appending the phrase "violation of the Shipping Act" to what is otherwise a commercial accounting dispute.

Count II fails that rule on its face. Daynamez titled Count II "Breach of Contract and violation of the Shipping Act." It alleges that the parties entered into a commercial arrangement, that SIC owes Daynamez money under that arrangement, and that records attached as exhibits purportedly show the amount due. Count II does not merely resemble a contract claim; it is expressly pleaded as one.

In substance, Count II asks the Presiding Officer in this forum to adjudicate whether SIC has underpaid or failed to remit monies allegedly owed to Daynamez under the parties' agreement. That is the language and logic of a contract and accounting dispute, not a proper Shipping Act counterclaim within the Commission's limited jurisdiction.

The surrounding record confirms the same point. The Agency Agreement addresses the very subjects Count II invokes: provisions relating to profit structure, remittance and accounting, indemnity, and arbitration. Those provisions describe a contractual framework for handling commercial

disagreements between the parties. They do not transform an alleged failure to pay under that framework into a Shipping Act violation merely because one party chooses to label it as such in a counterclaim.

Where the gravamen of a claim is that one party owes the other money under a private agreement, the claim sounds in contract even if Shipping Act terminology is layered on top. That conclusion is consistent with the prior orders in this proceeding. Those orders confirm that the existence of a contract dispute does not itself establish or defeat a Shipping Act claim; a party still must plead an actual statutory violation within FMC jurisdiction. The same principle applies here in reverse. Daynamez cannot take a private money-owed theory and repackage it as a permissible counterclaim under 46 C.F.R. § 502.62(b)(4) without pleading an actual Shipping Act violation within the Commission's jurisdiction. For those reasons, Count II should be dismissed in full.

B. Count II Fails to State a Plausible Claim

Even if the Presiding Officer were to look past Count II's facially contractual character, Count II should still be dismissed because it does not plead a plausible Shipping Act claim under the standards this Presiding Officer has repeatedly applied in this case.

Under Rule 12 principles as incorporated through 46 C.F.R. § 502.12, a pleading must contain sufficient factual matter to state a plausible claim for relief. Labels, conclusions, and formulaic recitations do not suffice. This Presiding Officer has already relied on Twombly and Iqbal in evaluating the sufficiency of pleadings in this matter, and the same standard governs Daynamez's Counterclaim.

Count II does not identify the transactions on which it is based with the specificity required to cross the line from conceivable to plausible. It does not identify which shipments are implicated, which invoices were allegedly withheld, when the alleged nonpayment occurred, what amount is supposedly due as to any particular transaction, or what specific conduct by SIC violated any Shipping Act duty. Nor does it plead facts showing how SIC, with respect to the conduct complained of, was acting in a regulated capacity that gives rise to a statutory obligation enforceable in this forum.

Instead, Count II proceeds by assertion: SIC is allegedly an OTI or NVOCC, money is allegedly owed, and the conclusion is drawn that the Shipping Act was violated. That is precisely the sort of conclusory pleading this Presiding Officer has already held insufficient.

This defect is especially stark in light of the procedural history of this case. SIC was required to cure pleading deficiencies by supplying additional factual allegations and supporting exhibits before its statutory claims were permitted to proceed. Daynamez's Count II does not come close to matching that level of pleading discipline. It does not supply transaction-level factual content from which the Presiding Officer could reasonably infer liability under any identified Shipping Act duty. At most, it alleges a commercial grievance and references unspecified "records." That is not enough.

To the extent Respondent relies on Exhibits A, B, and C to cure the Counterclaim's pleading defects, those exhibits do not do so. As submitted, they appear to consist of cropped, low-resolution screenshots of purported email communications that are incomplete and difficult to read in material respects. They do not present the Presiding Officer with clear, full, readable communications, complete header information, or transaction-level facts from which a plausible Shipping Act violation could reasonably be inferred. Nor do they coherently identify the operative shipment, booking, bill of lading, container, invoice, amount due, date of nonpayment, or statutory duty allegedly breached. At most, the exhibits reinforce that Respondent is attempting to rely on fragmentary and unclear materials to substitute for facts that should have been pleaded in the Counterclaim itself.

That deficiency matters here. The prior orders in this proceeding have already required disciplined pleading and proper factual support, and Respondent previously pressed procedural and evidentiary objections to Complainant's own submissions. Respondent should not now be permitted to rely on truncated and materially unclear screenshots as a substitute for a properly pleaded counterclaim or as a basis to infer statutory liability within the Commission's limited jurisdiction. The Presiding Officer should therefore decline to treat Exhibits A, B, and C as supplying the missing factual content necessary to save Count II, and those materials likewise do not cure the Counterclaim's broader factual deficiencies.

Accordingly, even if Count II were not dismissed because it falls outside the proper scope of an FMC counterclaim, it should still be dismissed for failure to state a plausible Shipping Act claim.

C. Count I Fails to State a Cognizable Claim

Count I should also be dismissed as presently pleaded. Even read in the light most favorable to Daynamez, Count I does not set forth a coherent Shipping Act counterclaim. At most, it describes a downstream dispute involving alleged abandoned cargo, charges sought by third parties, and Daynamez's effort to shift those losses to SIC through theories of indemnity, defense, hold-harmless relief, and business or reputational harm.

To the extent Count I is premised on a downstream OOCL/DGS cargo dispute involving Daynamez, the Counterclaim still fails to identify a cognizable Shipping Act duty owed by SIC, fails to articulate a coherent theory that SIC acted in a regulated capacity in connection with the conduct alleged, and fails to plead the operative transactions with the factual specificity required by the prior orders in this proceeding.

Count I does not clearly identify the shipment or shipments at issue within the pleading itself. It does not identify the relevant booking number, container number, bill of lading number, invoice, amount, date of alleged nonpayment, or the precise role of DGS Logistics in the transaction. It likewise does not identify with discipline what OOCL allegedly demanded, when it did so, or how those demands translate into a statutory claim against SIC rather than a downstream commercial loss-allocation dispute.

Just as important, the relief sought in Count I confirms its non-statutory character. Daynamez seeks indemnification, defense, hold-harmless relief, loss of business, reputational damages, and consequential damages. Those are remedies typically associated with contract, indemnity, and downstream commercial liability disputes. If Daynamez has any arguable basis for such relief, it would arise, if at all, from the parties' private agreement and the allocation of risk under that agreement, including its indemnity provisions. But the existence of an indemnity clause in a contract does not convert an indemnity dispute into a Shipping Act counterclaim. The Commission's jurisdiction in this complaint proceeding does not expand merely because a respondent seeks to shift private commercial losses to the complainant.

The Agency Agreement underscores the point. Its provisions address profit structure, remittance and accounting, indemnity, and arbitration. Those provisions frame the parties' relationship in contractual and agency terms. Count I is entirely consistent with a theory that Daynamez believes SIC should bear downstream losses associated with a shipment or shipments, but that does not make Count I a cognizable Shipping Act counterclaim. It remains, at most, a dispute about who should bear downstream commercial consequences under the parties' arrangement.

Count I is also difficult to reconcile with Daynamez's own litigation position. In its affirmative defenses and prior motions, Daynamez has repeatedly maintained that this matter is contractual in nature, that the Commission lacks jurisdiction, and that disputes arising out of the agreement belong in arbitration in Vietnam. Yet in Count I, Daynamez asks the Presiding Officer to award indemnity-like and downstream-damages relief arising from the same relationship. That internal inconsistency is not, by itself, a basis for dismissal, but it reinforces the absence of a coherent statutory theory and highlights the essentially contractual nature of the claim Daynamez is attempting to assert here.

Accordingly, Count I, as presently pleaded, should be dismissed.

D. Alternative Request to Strike Non-Statutory Portions

Although the Commission's Rules do not contain a standalone strike provision for this circumstance, 46 C.F.R. § 502.12 permits resort to the Federal Rules of Civil Procedure where no specific Commission rule governs and where use of the Federal Rules is consistent with sound administrative practice. SIC therefore seeks, in the alternative, to strike non-statutory portions of the Counterclaim by analogy to Federal Rule of Civil Procedure 12(f), insofar as those matters exceed the limited scope of a counterclaim permitted by 46 C.F.R. § 502.62(b)(4).

If the Presiding Officer declines to dismiss the Counterclaim in full, the Presiding Officer should at minimum strike those portions that exceed the permissible scope of a Shipping Act counterclaim in this proceeding.

As to Count II, the Presiding Officer should strike the breach-of-contract component and any request for relief that depends solely on the proposition that SIC owes Daynamez money under the parties' agreement.

As to Count I, the Presiding Officer should strike Daynamez's requests for indemnification, defense, hold-harmless relief, reputational damages, business-loss damages, consequential damages, and any related non-statutory remedies to the extent those requests are not tethered to a properly pleaded Shipping Act claim within the Commission's jurisdiction.

VI. PRAYER FOR RELIEF

For the foregoing reasons, Complainant Southern International Co., Ltd. ("SIC") respectfully requests that the Presiding Officer enter an order:

1. dismissing Count II of Respondent's Counterclaim in full;
2. dismissing Count I of Respondent's Counterclaim in full;
3. in the alternative, striking those portions of the Counterclaim that exceed the permissible scope of a counterclaim in this Shipping Act proceeding, including any breach-of-contract, indemnity, hold-harmless, reputational-damages, business-loss, consequential-damages, or other non-statutory components not tethered to a properly pleaded Shipping Act claim within the Commission's jurisdiction;

SIC further requests such other and further relief as the Presiding Officer deems just and proper.

Respectfully submitted,

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Date: April 20, 2026

CERTIFICATE OF SERVICE

I hereby certify that on this 20th day of April, 2026, I caused a true and correct copy of the foregoing **Complainant's Motion to Dismiss Respondent's Counterclaim, or in the Alternative to Strike Portions of the Counterclaim** to be filed with the Secretary, Federal Maritime Commission, and served by electronic mail upon the following representative for the

Served upon:

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Respectfully submitted,

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